which, whatever became of charters, can never be abolished *de jure*, if *de facto*, till the general conflagration *. Our rights as men and freeborn Britiſh ſubjects, give all the coloniſts enough to make them very happy in compariſon with the ſubjects of any other prince in the world.

Every Britiſh Subject born on the continent of America, or in any other of the Britiſh dominions, is by the law of God and nature, by the common law, and by act of parliament, (excluſive of all charters from the crown) entitled to all the natural, eſſential, inherent and inſeparable rights of our fellow ſubjects in Great-Britain. Among thoſe rights are the following, which it is humbly conceived no man or body of men, not excepting the parliament, juſtly, equitably and conſiſtently with their own rights and the conſtitution, can take away.

1ſt. *That the ſupreme and ſubordinate powers of legiſlation ſhould be free and ſacred in the hands where the community have once rightfully placed them.*

2dly. *The ſupreme national legiſlative cannot be altered juſtly till the commonwealth is diſſolved, nor a ſubordinate legiſlative taken away without forfeiture or other good cauſe.* Nor then can the ſubjects in the ſubordinate govern-

ment

* The fine defence of the provincial charters by *Jeremy Dummer*, Eſq; the late very able and learned agent for the province of the *Maſſachuſetts-Bay*, makes it needleſs to go into a particular conſideration of charter privileges. That piece is unanſwerable, but by power and might, and other arguments of that kind.

ment be reduced to a ſtate of ſlavery, and ſubject to the deſpotic rule of others. A ſtate has no right to make ſlaves of the conquered. Even when the ſubordinate right of legiſlature is forfeited, and ſo declared, this cannot effect the natural perſons either of thoſe who were inveſted with it, or the inhabitants*, ſo far as to deprive them of the rights of ſubjects and of men.—The coloniſts will have an equitable right, notwithſtanding any ſuch forfeiture of charter, to be repreſented in parliament, or to have ſome new ſubordinate legiſlature among themſelves. It would be beſt if they had both. Deprived, however, of their common rights as ſubjects, they cannot lawfully be, while they remain ſuch. A repreſentation in Parliament from the ſeveral colonies, ſince they are become ſo large and numerous, as to be called on not on y to maintain provincial government, civil and military, among themſelves, for this they have chearfully done, but to contribute towards the ſupport of a national ſtanding army, by reaſon of the heavy national debt, when they themſelves owe a large one, contracted in the common cauſe, cannot be thought an unreaſonable thing, nor if aſked, could it be called an immodeſt requeſt. *Qui ſentit commodum ſentire debet et onus*, has been thought a maxim of equity. But that a man ſhould bear a burthen for other people, as well as himſelf, without a return, never long found a place in any law-book or decrees, but thoſe of

* See Magna Charta, the Bill of Rights. 3 Mod. 152. Salkeld 411. Vaughan 300.

of the moſt deſpotic princes. Beſides the equity of an American repreſentation in parliament, a thouſand advantages would reſult from it. It would be the moſt effectual means of giving thoſe of both countries a thorough knowledge of each others intereſts; as well as that of the whole, which are inſeparable.

Were this repreſentation allowed; inſtead of the ſcandalous memorials and depoſitions that have been ſometimes, in days of old, privately cooked up in an inquiſitorial manner, by perſons of bad minds and wicked views, and ſent from America to the ſeveral boards, perſons of the firſt reputation among their countrymen, might be on the ſpot, from the ſeveral colonies, truly to repreſent them. Future miniſters need not, like ſome of their predeceſſors, have recourſe for information in American affairs, to every vagabond ſtroller, that has run or rid poſt through America, from his creditors, or to people of no kind of reputation from the colonies; ſome of whom, at the time of adminiſtring their ſage advice, have been as ignorant of the ſtate of this country, as of the regions in Jupiter and Saturn.

No repreſentation of the colonies in parliament alone, would, however, be equivalent to a ſubordinate legiſlative among themſelves; nor ſo well anſwer the ends of increaſing their proſperity and the commerce of Great-Britain. It would be impoſſible for the parliament to judge ſo well of their abilities to bear taxes, impoſitions on trade, and other duties and bur-

burthens, or of the local laws that might be really needful, as a legiſlative here.

3dly. *No legiſlative, ſupreme or ſubordinate, has a right to make itſelf arbitrary.*

It would be a moſt manifeſt contradiction, for a free legiſlative, like that of Great-Britain, to make itſelf arbitrary.

4thly. *The ſupreme legiſlative cannot juſtly aſſume a power of ruling by extempore arbitrary decrees, but is bound to diſpenſe juſtice by known ſettled rules,* and by duly *authorized independent judges.*

5thly. *The ſupreme power cannot take from any man any part of his property,* without his conſent in *perſon or by repreſentation.*

6thly. *The legiſlative cannot transfer the power of making laws to any other hands.*

Theſe are their bounds, which by God and nature are fixed, hitherto have they a right to come, and no further.

1. *To govern by ſtated laws.*

2. *Thoſe laws ſhould have no other end ultimately, but the good of the people.*

3. *Taxes are not to be laid on the people, but by their conſent in perſon, or by deputation.*

4. *Their whole power is not transferable*.*

Theſe are the firſt principles of law and juſtice, and the great barriers of a free ſtate, and of the Britiſh conſtitution in particular. I aſk, I want no more—Now let it be ſhewn how it is reconcileable with theſe principles, or to many other fundamental maxims of the Britiſh conſtitution, as well as the natural and civil

* See Locke on Government, B. II. C. xi.